

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.74266 of 2023

Md. Soab Ali @ Soab Ali

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mst. Ismath Ara, Advocate

.... For the petitioner.

Mr. Noor Us Sadik Chowdhury, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 19.03.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in G.R. Case No.175 of 2022 (Gowainghat) corresponding to Gowainghat Police Station Case No.12 dated 20.07.2022 under Sections

143/447/448/323/307/302/436/427/506/34 of the Penal Code, 1860 now pending in the Court of learned Chief Judicial Magistrate, Sylhet and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that 75 accused persons including the petitioner attacked the dwelling house of the informant and committed murder of victim Kadir and Hasina on 15.07.2022 at 4.00 P.M. The name of the petitioner stands at serial No.17 in the FIR and it has been alleged that the petitioner struck sulfi blow on the chest of victim Abdul Kadir causing his death.

Ms. Mst. Ismath Ara, learned Advocate for the petitioner Md. Soab Ali @ Soab Ali submits that there were two cut injuries on the chest of victim Abdul Kadir and in the charge sheet the Investigating Officer attributed above two cut injuries to other co-accused persons namely Junaed Ahmed Pavel and Amin Ahmed. Above injuries were not attributed to the petitioner who is in custody for more than $1\frac{1}{2}$ year. The case has not yet been transferred to the Court of Session for trial.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State raises objection against granting of bail to the petitioner at this point of time.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

The name of the petitioner stands at serial No.17 in the FIR and the allegation brought against him is that he struck a sulfi blow on the chest of victim Abdul Kader.

It turns out from the post-mortem that there were two cut injuries on the chest of victim Abdul Kader. In the charge sheet the Investigating Officer stated that above cut injuries on the chest of Abdul Kadir was struck by co-accused Junaed and Amin Ahmed. The petitioner is in custody in connection of this case for $1\frac{1}{2}$ years.

On consideration of above materials on record we find substance in this petition under Section 498 of the Code of Criminal Procedure and the Rule issued in this connection deserve to be made absolute.

In the result, the Rule is made absolute.

Let accused-petitioner Md. Soab Ali @ Soab Ali, son of late Mobarok Ali be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Sylhet.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md Ali Reza, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER